relying on Article 46, which required the state to 'promote with special care' the educational interests of the 'weaker sections' of the people and protect them from social injustice and exploitation. Article 46 was not a fundamental right, but a directive principle of state policy included in Part IV of the Constitution. The directive principles are an instrument of instructions to the government, which are 'fundamental to the governance of the country'[11] but cannot be enforced on their own terms by the courts.

Each of the three judges of the high court issued a separate opinion. Chief Justice P.V. Rajamannar and Justice Vishwanatha Sastri both agreed that the Communal G.O. should be struck down as unconstitutional to the extent that it sanctioned reservations in college admissions, although they arrived at that decision for different reasons. According to the chief justice, the Communal G.O. prompted an 'obvious disparity' in the treatment of candidates,[12] because a Brahmin candidate with relatively high marks would not secure admission, whereas a non-Brahmin candidate with significantly lower marks would. While the state was obliged to promote the educational interests of weaker sections, that objective could not be achieved by simply any means. The fundamental rights, such as Article 15(1), prescribed limits on the means that the state could deploy to achieve that objective. The chief justice also considered it significant that Articles 15 and 29 of the Constitution did not include a clause analogous to Article 16(4) (which specifically authorized the state to make reservations in government jobs for backward classes of citizens). The logic was that those who drafted the Constitution introduced exceptions to equality where they intended for such exceptions to apply. For the court to hold in the Madras government's favour would be to smuggle in an exception where none existed.

Justice Vishwanatha Sastri held that the Communal G.O. violated Article 15(1) of the Constitution by making caste and religion 'a ground of admission or rejection'.[13] He did not see any merit in the Attorney General's argument based on Article 46 for two reasons. First, the argument was an artificial construct, because the Communal G.O. had existed since well before the Constitution (including Article 46) was enacted. It could hardly be said that the Communal G.O. was made in order to give effect to Article